

NYSCEF DOC. NO. 1

RECEIVED NYSCEF: 02/28/2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
DONNA GANTT and INGER BATTLE,

Plaintiffs,

- against -

THE CITY OF NEW YORK, P.O. ELIJAH
MITCHELL, P.O. JAVIER MORA, and
JOHN DOES "1-3", The names being
fictitious and identity unknown,Defendants.
-----X

Index No.

Plaintiff designates
Kings County as
place of trial.The basis of the
venue is the
location of occurrence.**S U M M O N S**

Plaintiffs resides at:

DONNA GANTT1540 A Bergen St. #3
Brooklyn, NY 11213

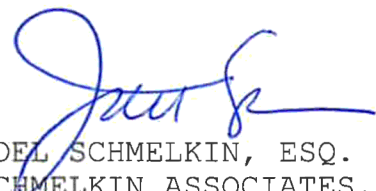
County of Kings

INGER BATTLE736 Willoughby Ave. #3E
Brooklyn, NY 11206

To the above named defendant(s):

County of Kings

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York
February 28, 2024
JOEL SCHMELKIN, ESQ.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs
DONNA GANTT and
INGER BATTLE
Office & P.O. Address
344 Willis Avenue
Mineola, New York 11501
(212) 227-8865/516-696-8865THE CITY OF NEW YORK, 100 Church Street, New York, N.Y. 10007P.O. ELIJAH MITCHELL, c/o: 75th Precinct, 1000 Sutter Avenue, Brooklyn, NY 11208P.O. JAVIER MORA, c/o: 75th Precinct, 1000 Sutter Avenue, Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DONNA GANTT and INGER BATTLE,

Index No.

Plaintiffs,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. ELIJAH
MITCHELL, P.O. JAVIER MORA, and
JOHN DOES "1-3", The names being
fictitious and identity unknown,

Defendants.

-----X

Plaintiffs, complaining of the defendants, by their
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

**PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF DONNA GANTT**

1. That, at all times hereinafter mentioned, and on
June 22, 2023, the plaintiff, **DONNA GANTT**, was and still is a
resident of the County of Kings, City and State of New York.

2. That, at all times hereinafter mentioned, and on
June 22, 2023, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
June 22, 2023, the defendant, **P.O. ELIJAH MITCHELL**, (hereinafter
referred to as "**MITCHELL**"), was and still is a resident of the City
and State of New York.

4. That, at all times hereinafter mentioned, and on June 22, 2023, the defendant, **P.O. JAVIER MORA**, (hereinafter referred to as **"MORA"**), was and still is a resident of the City and State of New York.

5. That, at all times hereinafter mentioned, and on June 22, 2023, the defendant, **"JOHN DOES 1-3", the names being fictitious and identity unknown**, (hereinafter referred to as **"DOES"**), were and still are a resident of the City and State of New York.

6. That, the plaintiff, **DONNA GANTT**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim and Supplemental Notice of Claims were served on September 14, 2023, and November 16, 2023, respectively within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **DONNA GANTT**, testified at an oral examination pursuant to the General Municipal Law on January 12, 2024; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

7. That, at all times hereinafter mentioned, and on June 22, 2023, plaintiff **DONNA GANTT** was present at the 75th Precinct, 1000 Sutter Avenue, Brooklyn, in the County of Kings, City and State of New York.

8. The plaintiff **DONNA GANTT** had asked the defendants, their agents, servants, and employees why the boyfriend of the co-plaintiff, **INGER BATTLE** was being arrested and what was the status.

9. The defendants, had ignored the plaintiff's question and thereafter started to beat and attack The plaintiff **DONNA GANTT**

10. The defendants had pushed the plaintiff down against to the ground, and the plaintiff hit her head.

11. The plaintiff then was dragged, by her arm and shoulder, by the defendants, into a separate room where she was cuffed and lying on the floor.

12. The plaintiff thereafter asked for medical help and an ambulance was called to the 75th precinct and took her to the Brookdale hospital.

13. There came a time when the plaintiff was taken by the defendants, back to the 75th precinct.

14. The plaintiff was placed in a cell, and had pain in her head, neck, back and left hand.

15. The plaintiff was held for a long and unreasonable period of time in the cell at the 75th precinct, had asked for more medical treatment, but was denied by the defendants.

16. The plaintiff was taken to central booking, and thereafter had seen a judge, and was released on her own recognizance

17. That the plaintiff, at all times, was cognizant of the fact that she was being unlawfully, detained and assaulted by the defendants, and did not consent to such treatment.

18. That, all charges against the plaintiff, **DONNA GANTT** were dismissed on October 12, 2023, after she was caused to appear in Criminal Court, on various occasions.

19. That as a result of the foregoing, the plaintiff **DONNA GANTT** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief her injuries are permanent in nature and effect.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONNA GANTT
(Assault and Battery)

20. That, the plaintiff, **DONNA GANTT** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

21. That, on June 22, 2023, the plaintiff, **DONNA GANTT** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **DONNA GANTT**, was assaulted/

battered without justification and without cause and without excuse.

23. That, the assault/battery took place at the 75th Precinct located 1000 Sutter Avenue, County of Kings, City and State of New York and other locations wherein the plaintiff, **DONNA GANTT** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on June 22, 2023, and for sometime prior thereto, defendant, **MITCHELL**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on June 22, 2023, and for sometime prior thereto, defendant, **MORA**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, at all times hereinafter mentioned and on June 22, 2023, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by

the defendant, **THE CITY**.

27. That, the aforementioned assault and battery of the plaintiff, **DONNA GANTT**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

28. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

29. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

30. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONNA GANTT

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

31. That, the plaintiff, **DONNA GANTT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 30 with the same force and effect as if hereinafter more fully set forth at length herein.

32. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **MITCHELL**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of

the defendant, **MORA**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MITCHELL**, who was employed by the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MORA**, who was employed by the defendant, **THE CITY**.

38. That, the defendant, **THE CITY**, was additionally

negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

39. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

40. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

41. That, by reason of the foregoing, the plaintiff, **DONNA GANTT** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONNA GANTT

(False Arrest and
False Imprisonment)

42. That, the plaintiff, **DONNA GANTT** , repeats,

reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 41 with the same force and effect as if hereinafter more fully set forth at length herein.

43. That, on June 22, 2023, the plaintiff, **DONNA GANTT**, was caused to be falsely arrested and falsely imprisoned without probable cause.

44. That, the plaintiff, **DONNA GANTT**, was arrested without an arrest warrant.

45. That, the false arrest/false imprisonment took place at the 75th Precinct, 1000 Sutter Avenue, in the County of Kings, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **DONNA GANTT** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DONNA GANTT**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

47. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DONNA GANTT**, was carried out by defendant, **MITCHELL**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

48. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DONNA GANTT**, was carried out by defendant, **MORA**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

49. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DONNA GANTT**, was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

50. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

51. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

52. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New

York.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONNA GANTT

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

53. The plaintiff, **DONNA GANTT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 52, with the same force and effect as if hereinafter more fully set forth at length herein.

54. That the plaintiff, **DONNA GANTT** did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time she was falsely arrested and imprisoned, assaulted and battered, excessive force was used against her; maliciously prosecuted and deprived of her constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

55. That at all times hereinafter mentioned, the defendant, **MITCHELL** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

56. That at all times hereinafter mentioned, the

defendant, **MORA** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

57. That at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

58. Defendant, **MITCHELL**, is being sued in his personal and official capacities for violation of plaintiff's

constitutional rights pursuant to 42 USC, §1983. Although defendant, **MITCHELL** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

59. Defendant, **MORA**, is being sued in his personal and official capacities for violation of plaintiff's

constitutional rights pursuant to 42 USC,§1983. Although defendant, **MORA** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

60. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC,§1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

61. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **DONNA GANTT** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **DONNA GANTT** to be secure in his person and effects against unreasonable search

and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **DONNA GANTT**, to be informed of the nature and cause of the accusation against her as secured to her under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **DONNA GANTT**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

62. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

63. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

64. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

65. That the deprivation of plaintiff, **DONNA GANTT's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

66. That the said customs and/or policies may be

inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

67. That, the detaining of plaintiff, **DONNA GANTT** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

68. That, the deprivation of plaintiff, **DONNA GANTT's** Constitutional rights was the result of the defendant, **MITCHELL's** arrest of the plaintiff **DONNA GANTT** without probable cause.

69. That, the deprivation of plaintiff, **DONNA GANTT's** Constitutional rights was the result of the defendant, **MORA's** arrest of the plaintiff **DONNA GANTT** without probable cause.

70. That, the deprivation of plaintiff, **DONNA GANTT's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **DONNA GANTT** without probable cause.

71. That, the deprivation of plaintiff **DONNA GANTT's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

72. That, the deprivation of plaintiff, **DONNA GANTT's** Constitutional rights was the result of the defendant, **MITCHELL's** use of excessive force.

73. That, the deprivation of plaintiff, **DONNA GANTT's** Constitutional rights was the result of the defendant, **MORA's** use of excessive force.

74. That, the deprivation of plaintiff, **DONNA GANTT's** Constitutional rights was the result of the defendant, **DOES** use of excessive force.

75. That, the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DONNA GANTT**.

76. That, by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **DONNA GANTT** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

77. That, by reason of the foregoing, the plaintiff, **DONNA GANTT** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief, her injuries are permanent in nature and effect.

78. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the

defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

79. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONNA GANTT
(Negligent Infliction
of Emotional Distress)

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **DONNA GANTT**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

82. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed

plaintiff by the laws and Constitution of the State of New York.

83. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

85. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

86. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

87. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

88. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONNA GANTT

(Intentional Infliction
of Emotional Distress)

89. That the plaintiff, **DONNA GANTT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 88 with the same force and effect as if hereinafter more fully set forth at length herein.

90. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **DONNA GANTT**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

91. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**,

which are therefore responsible for their conduct.

94. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

95. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

96. That, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

97. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONNA GANTT
(Failure to Intervene)

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

100. Defendants failed to intervene to prevent the unlawful conduct described herein.

101. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

102. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

104. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and

effect.

106. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

107. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

108. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONNA GANTT
Malicious Prosecution)

109. The plaintiff, **DONNA GANTT**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 108, with the same force and effect as if hereinafter more fully set forth at length herein.

110. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DONNA GANTT**, was caused due to a malicious prosecution of the plaintiff, **DONNA GANTT**, without cause, without reasonable cause, and without color of the law.

111. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other

employees of the defendant, **THE CITY OF NEW YORK**, failed to make a proper and thorough investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **DONNA GANTT**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

112. That, upon information and belief, all criminal charges against the plaintiff, **DONNA GANTT**, were ultimately dismissed on October 12, 2023.

113. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

114. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

115. That, by reason of the foregoing, the plaintiff, **DONNA GANTT**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

**PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF INGER BATTLE**

116. That, the plaintiff, **INGER BATTLE**, repeats,

reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 116 with the same force and effect as if hereinafter more fully set forth at length herein.

117. That, at all times hereinafter mentioned, and on June 22, 2023, the co-plaintiff, **INGER BATTLE**, was and still is a resident of the County of Kings, City and State of New York.

118. That, at all times hereinafter mentioned, and on June 22, 2023, the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

119. That, at all times hereinafter mentioned, and on June 22, 2023, the defendant, **P.O. ELIJAH MITCHELL**, (hereinafter referred to as "**MITCHELL**"), was and still is a resident of the City and State of New York.

120. That, at all times hereinafter mentioned, and on June 22, 2023, the defendant, **P.O. JAVIER MORA**, (hereinafter referred to as "**MITCHELL**"), was and still is a resident of the City and State of New York.

121. That, at all times hereinafter mentioned, and on June 22, 2023, the defendant, "**JOHN DOES 1-3**", **the names being fictitious and identity unknown**, (hereinafter referred to as "**DOES**"), were and still are a resident of the City and State of New York.

122. That, the plaintiff, **INGER BATTLE**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim and Supplemental Notice of Claim were served on September 14, 2023, and November 16, 2023 respectively, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the co-plaintiff, **INGER BATTLE**, testified at an oral examination pursuant to the General Municipal Law on January 17, 2024; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

123. That at all times hereinafter mentioned, and on June 22, 2023, co-plaintiff **INGER BATTLE** was present at the 75th Precinct, 1000 Sutter Avenue, in the County of Kings, City and State of New York.

124. The Plaintiff's boyfriend was taken to the 75th precinct and the plaintiff was inquiring about his status and she simply asked questions to the defendants.

125. After asking for the status the plaintiff was being ignored by the defendants, who had refused to provide a response.

126. The plaintiff again asked for this request and was ignored.

127. The plaintiff was there after pushed, and kicked in the thigh and leg, by the defendants who had come from behind a window.

128. The plaintiff was there after placed in a cell and held for a long and unreasonable period of time

129. The plaintiff was there after seen by a judge, and was released on her own recognizance

130. That while the plaintiff was held in police custody, against her will, she was caused to miss the funeral of her father, and as a result had suffered great, psychological trauma.

131. That the plaintiff was held against her will, and was assaulted, but the defendants which conduct was done against the plaintiff well, and the plaintiff was cognizant of this fact at all times.

132. That, all charges against the co-plaintiff, **INGER BATTLE** were dismissed on September 27, 2023, after appearing in Criminal Court on various occasions.

133. That as a result of the foregoing, the Co-plaintiff **INGER BATTLE** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief her injuries are permanent in nature and effect.

AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF INGER BATTLE
(Assault and Battery)

134. That, the plaintiff, **INGER BATTLE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 134 with the same force and effect as if hereinafter more fully set forth at length herein.

135. That, on June 22, 2023, the plaintiff, **INGER BATTLE** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

136. That, the plaintiff, **INGER BATTLE**, was assaulted/battered without justification and without cause and without excuse.

137. That, the assaulted/battery took place at the 75th Precinct, 1000 Sutter Avenue, County of Kings, City and State of New York and other locations wherein the plaintiff, **INGER BATTLE** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

138. That, at all times hereinafter mentioned and on June 22, 2023, and for sometime prior thereto, defendant, **MITCHELL**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

139. That, at all times hereinafter mentioned and on

June 22, 2023, and for sometime prior thereto, defendant, **MORA**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

140. That, at all times hereinafter mentioned and on June 22, 2023, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

141. That, the aforementioned assault and battery of the plaintiff, **INGER BATTLE**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

142. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

143. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants,

having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

144. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF INGER BATTLE

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

145. That, the plaintiff, **INGER BATTLE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 144 with the same force and effect as if hereinafter more fully set forth at length herein.

146. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

147. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

148. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **MITCHELL**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

149. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **MORA**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

150. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

151. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MITCHELL**, who was employed by the defendant, **THE CITY**.

152. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **MORA**, who was employed by the defendant, **THE CITY**.

153. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

154. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

155. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

156. That, by reason of the foregoing, the plaintiff,

INGER BATTLE has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF INGER BATTLE

(False Arrest and
False Imprisonment)

157. That, the plaintiff, **INGER BATTLE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 156 with the same force and effect as if hereinafter more fully set forth at length herein.

158. That, on June 22, 2023, the plaintiff, **INGER BATTLE**, was caused to be falsely arrested and falsely imprisoned without probable cause.

159. That, the plaintiff, **INGER BATTLE**, was arrested without an arrest warrant.

160. That, the false arrest/false imprisonment took place at the 75th Precinct located at 1000 Sutter Avenue, in the County of Kings, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **INGER BATTLE** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

161. That, the aforementioned false arrest and false imprisonment of the plaintiff, **INGER BATTLE**, was carried out by police officers and/or other servants, agents and/or employees of

the defendant, **THE CITY**.

162. That, the aforementioned false arrest and false imprisonment of the plaintiff, **INGER BATTLE**, was carried out by defendant, **MITCHELL**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

163. That, the aforementioned false arrest and false imprisonment of the plaintiff, **INGER BATTLE**, was carried out by defendant, **MORA**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

164. That, the aforementioned false arrest and false imprisonment of the plaintiff, **INGER BATTLE**, was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

165. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

166. That, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional

actions as well as the defendants and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

167. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF INGER BATTLE
(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

168. The plaintiff, **INGER BATTLE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 167, with the same force and effect as if hereinafter more fully set forth at length herein.

169. That, the plaintiff, **INGER BATTLE** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time she was falsely arrested and imprisoned, assaulted and battered, excessive force was used against her; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

170. That, at all times hereinafter mentioned, the defendant, **MITCHELL** was employed in his respective capacity by

the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

171. That, at all times hereinafter mentioned, the defendant, **MORA** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

172. That, at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

173. Defendant, **MITCHELL**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **MITCHELL** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action

whatever against any of their employees or agents.

174. Defendant, **MORA**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **MORA** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

175. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

176. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **INGER BATTLE** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **INGER BATTLE**

to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **INGER BATTLE**, to be informed of the nature and cause of the accusation against her as secured to her under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **INGER BATTLE**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

177. That, the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

178. That, the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

179. That, the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

180. That, the deprivation of plaintiff, **INGER BATTLE's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

181. That, the said customs and/or policies may be

inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

182. That, the detaining of plaintiff, **INGER BATTLE** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

183. That, the deprivation of plaintiff, **INGER BATTLE's** Constitutional rights was the result of the defendant, **MITCHELL's** arrest of the plaintiff **INGER BATTLE** without probable cause.

184. That, the deprivation of plaintiff, **INGER BATTLE's** Constitutional rights was the result of the defendant, **MORA's** arrest of the plaintiff **INGER BATTLE** without probable cause.

185. That, the deprivation of plaintiff, **INGER BATTLE's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **INGER BATTLE** without probable cause.

186. That, the deprivation of plaintiff **INGER BATTLE's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

187. That, the deprivation of plaintiff, **INGER BATTLE's** Constitutional rights was the result of the defendant, **MITCHELL's** use of excessive force.

188. That, the deprivation of plaintiff, **INGER BATTLE's** Constitutional rights was the result of the defendant, **MORA's** use of

excessive force.

189. That, the deprivation of plaintiff, **INGER BATTLE's** Constitutional rights was the result of the defendant, **DOES** use of excessive force.

190. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **INGER BATTLE**.

191. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **INGER BATTLE** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

192. That, by reason of the foregoing, the plaintiff, **INGER BATTLE** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and upon

information and belief, her injuries are permanent in nature and effect.

193. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

194. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF INGER BATTLE

(Negligent Infliction
of Emotional Distress)

195. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 194 with the same force and effect as if more fully set forth at length herein.

196. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **INGER BATTLE**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights

as guaranteed by the laws and Constitution of the State of New York.

197. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

198. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

199. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

200. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

201. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

202. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as

well as having performed intentional acts.

203. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF INGER BATTLE

(Intentional Infliction
of Emotional Distress)

204. That the plaintiff, **INGER BATTLE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 203 with the same force and effect as if hereinafter more fully set forth at length herein.

205. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **INGER BATTLE**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

206. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed

plaintiff by the laws and Constitution of the State of New York.

207. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

208. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

209. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

210. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

211. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

212. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New

York.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF INGER BATTLE
(Failure to Intervene)

213. The plaintiff repeats, reiterates and realleges, each and every allegation contained in paragraphs marked 1 through 212 with the same force and effect as if more fully set forth at length herein.

214. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

215. Defendants failed to intervene to prevent the unlawful conduct described herein.

216. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

217. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

218. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

219. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

220. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

221. That, this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

222. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

223. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN SIXTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF INGER BATTLE
(Malicious Prosecution)

224. The plaintiff, **INGER BATTLE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 223, with the same force and effect as if hereinafter more fully set forth at length herein.

225. That, the aforementioned false arrest and false imprisonment of the plaintiff, **INGER BATTLE**, was caused due to a malicious prosecution of the plaintiff, **INGER BATTLE**, without cause, without reasonable cause, and without color of the law.

226. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY OF NEW YORK**, failed to make a proper and through investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **INGER BATTLE**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

227. That, upon information and belief, all criminal charges against the plaintiff, **INGER BATTLE**, were ultimately dismissed on September 27, 2023.

228. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, was injured; was rendered sick, sore, lame and disabled; will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon

information and belief, her injuries are permanent in nature and effect.

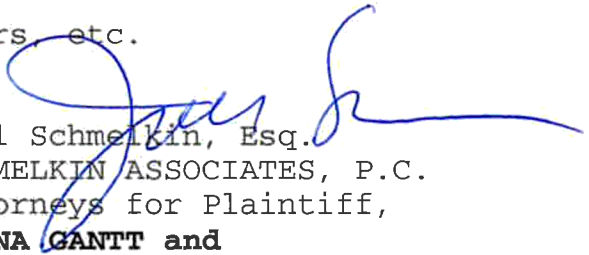
229. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

230. That, by reason of the foregoing, the plaintiff, **INGER BATTLE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **DONNA GANTT**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York as well as the costs, disbursement and legal fees pursuant to 42 U.S.C. Section 1988 of these causes of action; and plaintiff, **INGER BATTLE** demands judgment against the defendants, on the Ninth, Tenth, Eleventh, Twelfth, Thirteenth, Fourteenth, Fifteen and Sixteenth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: Mineola, New York
February 28, 2024

Yours, etc.



Joel Schmelkin, Esq.
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Attorneys for Plaintiff,

DONNA GANTT and

INGER BATTLE

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Index No. Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DONNA GANIT and INGER BATTLE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, ET AL.,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone
Donna Ganit and Inger Battle
344 WILLIS AVENUE
MINEOLA, NY 11501
(212) 227-8865
(516) 696-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated:

Signature

February 28, 2024

Print Signer's Name

Service of a copy of the within

JOEL SCHMELKIN is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a entered in the office of the clerk of the within-named Court on 20

☐ NOTICE OF SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the Hon. , one of the judges of the within-named Court, at 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
344 WILLIS AVENUE
MINEOLA, NY 11501
(212) 227-8865
(516) 696-8865

Attorney(s) for